

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 684

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO COUNTY SHERIFFS; AMENDING CHAPTER 6, TITLE 20, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 20-629, IDAHO CODE, TO AUTHORIZE A SHERIFF'S OFFICE TO SEEK REIMBURSEMENT FOR COSTS OF RECAPTURE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 6, Title 20, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 20-629, Idaho Code, and to read as follows:

20-629. COSTS FOR RECAPTURE. Whenever any Idaho county sheriff's office is required to expend money from its budget in order to travel to another state to collect a prisoner, probationer, or parolee who has absconded from the supervision of the Idaho department of correction, the sheriff, upon completion of the collection of the prisoner, probationer, or parolee and the placement of such person in the county jail, may seek reimbursement for the cost of returning the person to Idaho from the agency from which the person absconded as indicated in court records. Such reimbursement shall be sought by submitting an invoice detailing the cost of such recapture, including any mileage or travel costs, costs for personnel, overtime costs associated with coverage for traveling personnel, or any other reasonable costs associated with returning the absconding person to custody in Idaho. The Idaho department of correction shall appropriate moneys annually for expenses as provided in this section and shall, upon receiving the invoice from a county sheriff's office, ensure reimbursement occurs within thirty (30) days of receiving such invoice.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.